

## 26STCV01753 26STCV01753

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-06-23

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Case Number: 26STCV01753 Hearing Date: June 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 23, 2026

Case Name: Oliveros v. AZ Air conditioning and Heating, Inc., et al.

Case No.: 26STCV01753

Matter: Motion to Compel Arbitration

Moving Party: Defendants Defendants AZ Air Conditioning and Heating, Inc., Apex

Service Partners, LLC, and Apex California Region Holdco, LLC

Responding Party: Plaintiff Osiel Oliveros

Notice: OK

Ruling: The Motion to Compel Arbitration is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment action. Defendants AZ Air Conditioning and Heating, Inc., Apex Service Partners, LLC, and Apex California Region Holdco, LLC seek to compel arbitration.

"[O]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc. § 1281.2; see also *EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc. § 1281.2(a)-(c).)

"On a petition to compel arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.) The party seeking to compel arbitration must also "plead and prove a prior demand for arbitration and a refusal to arbitrate under the agreement." (*Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 640-641.)

Plaintiff's timeliness argument lacks merit because sufficient prejudice has not been shown given the filing of the Opposition.

Further, Defendants have supported the existence of a valid and binding arbitration agreement. Plaintiff cannot meet his burden in opposing the instant Motion by providing that he does not recall any arbitration agreement. (*Blau v. AT&T* (N.D. Cal. 2012) 2012 WL 10546 at \*4.) Further, "ordinarily one who signs an instrument which on its face is a contract is deemed to assent to all its terms. A party cannot avoid the terms of a contract on the ground that he or she failed to read it before signing." (*Marin Storage & Trucking, Inc. v. Benco Contracting & Engineering, Inc.* (2001) 89 Cal.App.4th 1042, 1049.)

Plaintiff also argues that because he pleads sexual harassment, arbitration is precluded by the EFAA.

To establish a prima facie case of harassment under the FEHA, the plaintiff must show that (1) she was a member of a protected class, (2) she was subjected to unwelcome harassment based on her protected status, and (3) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.) " 'Harassment cannot be occasional, isolated, sporadic, or trivial; rather the plaintiff must show a concerted pattern of harassment of a repeated, routine or a generalized nature.' " (*Aguilar v. Avis Rent A Car System, Inc.* (1999) 21 Cal.4th 121, 131.) In other words, the harassment must be "sufficiently severe or pervasive to alter the condition of the victim's employment and create an abusive environment," as judged by the reasonable person belonging to the plaintiff's protected class. (*Thompson*, at p. 877.)

While personnel management may serve as evidence of harassment where there is a widespread pattern of bias communicating a hostile message (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 763), personnel management alone is not sufficient.

Plaintiff's EFAA argument lacks merit because the Complaint fails to plead sexual harassment. Instead, it pleads claims for discrimination and failure to accommodate. The Complaint pertains to the assignment of job duties, which is merely personnel management. Moreover, telling an employee to "suck it up" is not sufficiently severe or pervasive to constitute harassment.

Plaintiff argues that the agreement is unconscionable.

“ [U]nconscionability has both a “procedural” and a “substantive” element,’ the former focusing on ‘ “oppression” ’ or ‘ “surprise” ’ due to unequal bargaining power, the latter on ‘ “overly harsh” ’ or ‘ “one-sided” ’ results. [Citation.] ‘The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree.... [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal.4th 83, 114.)

Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83 requires that an arbitration agreement pertaining to FEHA claims: (1) provide for neutral arbitrators, (2) provide for more than minimal discovery, (3) require a written award, (4) provide for all of the types of relief that would otherwise be available in court, and (5) not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal.4th 83, 102.)

Plaintiff failed to establish the necessary level of substantive unconscionability to invalidate the subject agreement. For example, discovery under the JAMS rules is sufficient. (Cf. Fitz v. NCR Corp. (2004) 118 Cal.App.4th 702, 709.)

Finally, the Apex Defendants can compel arbitration as agents or third-party beneficiaries. (See Dryer v. Los Angeles Rams (1984) 40 Cal.3d 406, 418.)

Because a valid arbitration agreement encompasses Plaintiff's claims, the Motion to Compel Arbitration is granted.

The action is stayed pending the resolution of arbitration. (CCP § 1281.4.)

Moving party to give notice.